

CHAPTER ONE

GENERAL ORIENTATION

1.1. Introduction

The use of science and technology in the process of legal fact finding eases the process and may help promotion of accuracy in decision making. Nowadays the scientific and technological advances over the world has contributed to the justice system in that it has being used in the process of investigation in one way or another. By doing so science and technology has encroached upon the boundary of legal regime. As such there should be a great care in accommodating the contemporary scientific development in the process of legal proceedings so as not to lose the benefit there from in one way and avoid a possible misuse of such developments on the other hand. This, however, is not as such an easy task because of difference in pace of development as well as approach between science and law. When we see the pace at which they evolve; law plods overtime whereas science sprints almost on a daily basis. Regarding the approaches adopted under each discipline *law is a normative pursuit that seeks to define how public and private relations should function, whereas science embraces empirical analysis to discover truth as found in veritable facts and as such it is a descriptive pursuit to truth, which does not define how the universe should be rather how it actually is.*¹ The different jurisdictions of the world approaches the dilemmas the contemporary scientific developments posed on the law differently. Many of them have tried to review their legal system, though not as such comprehensively in the way that will allow the use of such science and techniques properly. A lot of forensic techniques have been developed and in use under legal proceedings.

Coming to the case of Ethiopia, though there is no as such technical and scientific developments in the process of investigation, the existing forensic and medical investigation systems and their use in legal proceedings is not well accommodated by the counterpart existing legal system. The

¹ Committee on Science, Technology, and Law (USA), Strengthening Forensic Science in the States: A Path Forward (http://nap.edu/openbook.php?record_id=12589&p.86) Last visited 15 Dec., 2012

general legal scenario of proof in legal proceedings is not well organized and not as such comprehensive enough. More specifically Ethiopia does not have a codified and well developed law of evidence. The existing legal regime on evidence is found scattered both under the procedural and substantive legislations. There is also a judicial practice by the federal Supreme Court cassation division as to its decision pertinent to rules of evidence in general and technical evidence in particular. Therefore, the extent to which scientific and technical evidences (forensic evidences, in its most understood nomenclature in Ethiopia) are governed under Ethiopian legal regime needs the study of the different legislations as well as the decisions of the federal Supreme Court cassation division on the cases involving scientific and technical evidence.

1.2 Research problem

The existing legal regime in Ethiopia does not properly govern science and technology issues in the process of administration of justice. This may affect the proper utilization of scientific and technical methods in criminal investigation fields. For instance in the absence of clear enabling legislation with regard to physical examination of a suspect who refuses such an examination there will arise certain constitutional and policy dilemmas such as violation of the right to privacy, life, physical integrity as well as injustice due to the use of junk science.

Furthermore, in the absence of clear and effective rules of expert evidence courts would likely face the challenges of assessing the admissibility of forensic evidence. In the absence of proper legal standard for the admissibility of forensic evidence no uniform judicial practices may develop. Furthermore, unreliable forensic technique may enter the justice system thereby resulting in injustice at least in principle.

1.2. Objectives of the study

Generally the research is undertaken with the aim of sorting out the possible legal rules that would govern issues related to scientific and technical evidences in legal proceedings, and the contemporary jurisprudential trend of the federal Supreme Court in its cassation division.

1.3. Specific research questions

In this research paper the specific questions to be addressed will concern:

1. Whether evidence of scientific or technical nature are recognized under Ethiopian legal system.
2. Whether the existing legal regime lays down the minimum standard of conduct for the investigators and to what extent the constitutional rights of privacy, the right against self-incrimination and the right to physical integrity of individual suspects are protected during such scientific investigation such as DNA and blood test undertakings.
3. Whether there is properly developed standard of admissibility of scientific and technical evidences such as fingerprint and DNA test under the existing legal system.

1.4. Significance of the study

Cognizant of the existing scarce and inadequate written materials on the Ethiopian law of evidence in general and particularly the absence of a specific research work on the country's legal scenario of scientific and technical evidence, this mini paper work will serve a footstep for a detailed and advanced legal analysis on the subject matter by potential researchers interested in the field.

1.5. Research methodology

The research is undertaken using doctrinal method of researching. The relevant literatures consulted are books written by legal scholars abroad as well as at home and internet browses. Pertinent legislations of Ethiopia and some other jurisdictions are also consulted.

1.6. Chapter outlines

Chapter two of the research is dedicated to introduce the general background of the study. The concepts of "evidence", "law of evidence", "forensic evidence" and "forensic investigation" are defined and their nature are discussed. The two way relationship between science and law will be touched upon and the way some of the jurisdictions of the world has tried to make use of science and technology under their respective legal system will be discussed in nutshell with particular emphasis on their rules of evidence.

Chapter three will concentrate wholly on the identification and adequacy of Ethiopian legal rules governing matters of scientific tools and techniques in the legal proceedings. Under the chapter the recognition of certain scientific methods in the process of proof under the existing pertinent

substantive and procedural legislations as well as jurisprudential trend of the federal Supreme Court will be examined.

Finally the work will wind up with conclusion as to the findings and recommendation as to possible reform necessary to the legal regime on the point.

CHAPTER TWO

FORENSIC EVIDENCE AND ITS LEGAL SCENARIO IN GENERAL

2.1. Introduction

In any legal proceedings, i.e., civil, criminal and administrative, and under any jurisdictions, the use of evidence in the process of proof make up the most important part of the dichotomy of **law and fact** because no law can apply in vacuum. The fact to which the law should apply has to be established first. The uses of evidence in the process of legal proceedings have existed since the time immemorial.² During the middle ages in Europe, people commonly believed that guilt or innocence could be determined by God through the mystic procedure of “trial and ordeal”.³ An example of such a test was the ordeal by fire in which an accused is forced to walk bare-foot over hot coals, carry a red-hot iron and the absence of injury thereof has been believed to be proof of innocence.⁴

Through the passage of time, the mode of proof has been changed with the growth in human civilization. The advances in science and technology in the contemporary world have its own effect and implication on the process of proof in the legal proceedings. One of the results of such scientific advances is forensic science which is thought to be the hand maiden of the contemporary justice system meaning that the contemporary scientific and technological developments are being used in the process of investigation.⁵

2.2. Evidence and the law of evidence defined

The concept of evidence is not as such plainly understood and cannot be defined comprehensively. Etymologically the term “evidence” is originated from the Latin word *evidera* which means “to show clearly or making something to be seen vividly, or to prove”.⁶ This is a non technical definition given to evidence i.e., evidence in an ordinary sense of the term.

² Robert M. Bohm and Koith N. Halley, Introduction to criminal Justice, (1997), P.14.

³ Ibid

⁴ Ibid

⁵ Mike Redmayne, Expert Evidence and Criminal Justice, (2001), p.3.

⁶ Tatek Tadese, Principles of Law of Evidence, (2004), p.1 (Amharic)

Black's Law Dictionary defines "evidence" as "something (including testimony, documents and tangible objects) that tends to prove or disprove the existence of an alleged fact."⁷ Accordingly evidence, in its legal sense, can be understood to be any sort of materials which have a bearing on the existence or non-existence of facts in dispute. Some of such materials can be testimony of a person, documents or any other tangible objects, with a capacity to show the truthfulness of contentious facts.

Another scholarly definition of evidence is that it is "any species of proof or probative matter, legally presented at the trial of an issue, by the act of the parties and through the medium of witnesses, records, documents, exhibits, concrete objects, etc for the purpose of inducing belief in the mind of the court or jury as to their contention."⁸ In this specific and explicit approach of defining the concept, evidence is any matter that is used in court during trial so as to induce a belief in the tribunal of facts.

Generally evidence may be defined as various things presented in court for the purpose of proving or disproving a question under inquiry. Accordingly, any matters which may induce a belief in the mind of the tribunal of fact can be termed *evidence*.

In the process of proof the different activities, such as production of evidence, rebutting of evidence produced, and ruling over the relevance, reliability, and most importantly, the admissibility of evidence are regulated by a body of law known as the law of evidence. The law of evidence is described as a 'law in practice' which means that it does not apply independently from other factors such as logic, common sense, public policy, psychology, philosophy, and legal principles, and do not exist solely as a matter of academic interest and debate.⁹ The law of evidence is shaped and evolved over time through the discretionary judicial practices on the one hand and the inflexible legal rules on the other hand. It is widely held that the law of evidence is a separate *body of law* that regulates the different concepts of proof such as burden of proof, admissibility, and the probative value of evidence.¹⁰ This is to show that the law of evidence is not considered as a branch rather as a separate body of law influenced and shaped by factors such as common sense, logic and the like.

⁷ Bryan A. Garner (ed.), Black's Law Dictionary, (7th ed., 1999), p.660.

⁸ J.H.Kaci, Criminal Evidence, (4th ed., 2000), p.2

⁹ Raymond Emson, Evidence, (4th ed., 2006), p.4

¹⁰ Ibid, see also supra n.6, p. 9

Besides the existence of a consensus on the purpose of law of evidence, different legal systems of the world do have different approaches, with less or more similarity, as to the organization, source and scope of the law of evidence. The way the general legal system is organized over the world shows certain different approach with respect to the issues of regulating evidence. Most generally the existing discrepancy under the two well known legal systems of the world, as to the law of evidence, can be summarized as that under the common law legal system evidence law is a well-organized body of ready-to hand rules containing the crystallized wisdom of many generation of judges, devised and well fitted to protect the jury from dubious, misleading or inflaming evidence and the litigant parties from arbitrariness of the individual judge, whereas the modern civil law system of “free proof” is no system at all, or, at best, a system where the judge’s discretion largely determines what evidence is to be used, or, even worse, where only the examining judge decides what witnesses shall be summoned.¹¹

2.3. The meaning and nature of forensic evidence

“Whenever he steps, whatever he touches, whatever he leaves, even unconsciously, will serve as a silent witness against him. Not only his fingerprints or his footprints, but his hair, the fibers from his clothes, the glass he breaks, the tool mark he leaves, the paint he scratches, the blood or semen he deposits or collects. All of these and more bear mute witness against him. This is evidence that does not forget. It is not confused by the excitement of the moment. It is not absent because human witnesses are. It is factual evidence. Physical evidence cannot be wrong, it cannot perjure itself, it cannot be wholly absent. Only human failure to find it, study and understand it can diminish its value.”¹²

Though there is no commonly established rule for the classification of evidence, it is possible to understand from the different definitions given to evidence that there is a wide variety of evidence that can be used in the process of proof, depending upon the nature and type of the offence or the dispute, the particular circumstances under which the crime is committed and the degree of the offence. This holding can be further confirmed by the very nature of the law of evidence i.e., its dynamism and flexibility as discussed earlier. Hence, physical evidences such as

¹¹ Daniel A. Bronstein, Law for the Expert Witness, (3rd ed., 2007), p.21

¹² Kelly M. Pyreck, Forensic Science under siege: The challenges of Forensic Laboratories and The medical Legal Investigation system, (2007), p.1.

those which are shown in the quotation above can be collected and studied using proper scientific and technical expertise so as to aid the justice. Such scientifically and technically collected and analyzed evidence can be called forensic evidence. Hence forensic evidence is sort of physical evidence that is taken from the place where a crime is committed and analyzed using scientific methods to aid investigators and the court in solving a case.¹³ It is the nomenclature used to denote the different kind of evidence collected using different scientific techniques, usually known as forensic science techniques. Forensic science, also known as forensics, is the “scientific collection and analysis, or study, of physical evidence such as, but not limited to, blood, fibers, bullets, and fingerprints, so as to establish a fact.”¹⁴ It is the application of science and technology in the process of fact finding in the legal proceedings. Historically modern forensic science has been originated in the late 19th century when European criminal investigators began to use fingerprinting and other identification techniques to solve crimes.¹⁵ And With the advances in science and technology currently there are a wide variety of forensic science techniques being used in legal proceedings.

2.4. Some examples of forensic evidence

2.4.1) DNA fingerprinting

DNA (deoxyribonucleic acid) analysis was developed by an English genetist in 1985.¹⁶ DNA printing is the process by which a unique genetic fingerprint of a criminal suspect that can be derived from his blood, hair, semen, or other bodily substance so as to be examined scientifically vis-à-vis the sample found at the scene of a crime or on a victim.¹⁷ This is the most effective sort of forensic evidence because every person’s DNA is unique except identical twins and currently it is the most important sort of forensic evidence for its accuracy in establishing the truth.¹⁸ DNA evidence can be used to establish parentage of a child in case of dispute of paternity, and detect the identity of the perpetrator by establishing a relation between the samples

¹³ Dayna Nofke, Types of Forensic Evidence (www.ehow.com/facts-5200422-types-forensic-evidence.html). Last visited 15 Dec., 2012.

¹⁴ Gerald and Kathleen H:11, Forensic investigation, (<http://www.legal-dictionary.com/forensic+investigation>), Last accessed 22 Dec Last visited 15 Dec., 2012.

¹⁵ Ibid

¹⁶ Supra n.1,p214

¹⁷ Ibid

¹⁸ Andrew R.W. Jackson and Julie M. Jacks, Forensic Science, (2004), p.242.

discovered at crime scene and that of the suspect.¹⁹ Hence, DNA evidence is one of the most valuable forensic evidence that can be used in the process of proof. The fact that any sort of bodily fluids do have DNA information also can facilitate the process of investigation on the one hand and can serve detection of different kinds of crime on the other hand.

2.4.2) Questioned document analysis

Questioned documents include disputed wills, forged checks, altered receipts, and anonymous letters and technical investigation over these types of documents serve the determination of the authenticity of the documents, identification of the author of a given handwriting and/or signature through the use of scientific methods.²⁰

2.4.3) Finger print evidence

Fingerprint is an impression of the ridges on the pad of a finger, usually used to identify the perpetrator of a certain crime by studying and comparing the impression located at the place of the offence vis-à-vis the fingerprint sample of the suspect or the samples found in a stored Fingerprint Data Base so as to identify the perpetrator of the crime under investigation on the basis of the scientific premises underlying fingerprint evidence which are (1) uniqueness, i.e., no two individuals share the same combination of ridges and roughs which make up a finger print, and (2) permanence. i.e., that an individual's fingerprints are permanent, i.e., once fingerprints are emerged at fetus's stage of human development, they do not change with time unless affected by a very deep wound.²¹

In their very nature forensic evidences are normally considered as a *mute witness* against the suspects in that they are inanimate evidences collected, examined and presented by experts who are not present in the place of the crime and as such unlike an eye witness account who perceives the facts in dispute directly forensic evidence proves the fact indirectly. Therefore, forensic evidence is a sort of circumstantial evidence which requires the court to make an inference in order to conclude that the facts in dispute exist or does not exist. Thus, the process of investigation into such physical evidences requires great curiosity and expertise so as to produce

¹⁹ Ibid

²⁰ Id at p.236.

²¹ Supra n.8, p.282.

reliable evidence.²² This in turn may require proper and distinct rule of evidence which has to be in tune with the evolving dynamic scientific developments underpinning such different forensic techniques.

Forensic evidence is usually brought into court in the form of expert report and the expert responsible for the analysis of evidential items during investigation is required to write up his or her findings in the form of a report.²³ Only occasionally is the expert required to appear in court as an expert witness.²⁴

2.5. The legal scenario of forensic evidence under some jurisdictions

One of the most important and allegedly venerable century-old forensic evidence is fingerprint evidence and it has begun to be used in criminal investigation in Europe in the late 19th century.²⁵

The beginning of the use of science and technology in a legal proceeding has posed a challenge on the frontier of the pre-existing legal system in one way or another. The problem arises from the fundamental differences between the legal and scientific processes as discussed under previous chapter.²⁶

The existing differences in approach between science and law could engender both systemic and pragmatic dilemmas for the law and the actors within it. In almost every instance, scientific evidence tests the abilities of judges, lawyers, and jurors, all of whom may lack the scientific expertise to comprehend the evidence and evaluate it in an informed manner.²⁷

Currently there is no comprehensive law of evidence governing forensic evidence properly and sufficiently elsewhere over the world. The existing legal regime of some jurisdictions is discussed below with special emphasis on the rules of admissibility of forensic evidence so as to keep the spacial scope within limit.

²² Supra n.5

²³ Supra n.18, pp-2,362.

²⁴ Ibid

²⁵ Supra n.14

²⁶ Committee on Science, Technology, and Law (U.S), Strengthening Forensic Science in the United States: A path Forward ([http://www.nap.edu/Dopen_book.php?record-id=12589 &p.86](http://www.nap.edu/Dopen_book.php?record-id=12589&p.86)), visited 15 Dec.,2012.

²⁷ Ibid

2.5.1 The United States' scenario

In the United States the process of proof is governed by a written codified rules, the Federal Rules of Evidence (FRE) which was adopted by the federal supreme court in 1972 and enacted by the congress in 1973 and amended several times and which is thought to be “nothing more than a uniform compilation of evidence in the courts throughout the United States.”²⁸ The Rule is developed from the preceding judicial practices and hence it is practically tested over time. From the stand point of forensic evidence the pertinent rule of the FRE is Rule 702, “Testimony by Experts”, which states:

*If scientific, technical, or other specialized knowledge will assist the trier of fact to understand the evidence or to determine a fact in issue, a witness qualified as an expert by knowledge, skill, experience raining, or education, may testify there to in the form of an opinion or otherwise, if (1) the testimony is based upon sufficient facts or data, (2) the testimony is the product of reliable principals and methods, and (3) the witness has applied the principals and methods reliably to the facts of thecae.*²⁹

A pre-existing rule which is thought to be one of the most important incidents for the amendment to rule 702 above was the decision of the federal Supreme Court on the case Daubert v. Merell Dow pharmaceuticals Inc. in 1993.³⁰ The case³¹ involved the issue of two children with serious birth defects in which Daubert contended that the defects were caused by a Merell Dow drug the mother had taken during pregnancy. He wanted to offer the scientific testimony of eight experts who had conducted animal studies and chemical structure analysis on the drug and concluded that it could cause birth defects. The company responded with published scientific epidemiological studies showing that the drug was not a risk factor for birth defects. The trial court, citing Frye, The court of Appeals affirmed the trial court's ruling, but the U.S. Supreme Court reversed the court of Appeals. In its opinion, the court undertook a detailed examination of whether the Federal Rules of Evidence superseded Frye. It concluded that Frye's 'general

²⁸ Supra n.10, p.66

²⁹ www.law.cornell.edu/rules/fre/rule-702 (visited 20 Dec., 2012)

³⁰ Supra n.4, p.198.

³¹ U.S. supreme court (rulings on forensic evidence) (<http://www.enotes.com/U-S-Supreme-Court-rulings-forensic-evidence-reference/>), Last accessed 18 Jan., 2013.

acceptance' is not a necessary precondition to the admissibility of scientific evidence and that the Federal Rules "assign to the trial judge the task of ensuring that an expert's testimony both rests on a reliable foundation and is relevant to the task at hand."

The court has laid down guideline that has to be followed by a trial judge while determining the reliability and validity of scientific and technical evidences. Accordingly a trial judge can no longer defer to expert's opinion simply based upon the general acceptance of the expert's field but must serve as a kind of gatekeeper by holding what are commonly known as Daubert hearings, or pretrial hearings on the validity of the scientific evidence in question using a list of test such as (1) whether the theory or technique can be and has been tested, (2) whether there has been peer-review on the theory or technique, (3) the known or potential rate of error, (4) the existence and maintenance of rule or standards controlling the techniques' operation, and (5) whether the theory or technique enjoys general acceptance or consensus within a relevant scientific community.³²

Daubert standard requires the courts to re-examine the validity and reliability of such forensic tools as DNA testing, finger printing, hand writing analysis, fiber comparison, and the identification of firearms, bite marks, tire marks, and blood spatter patterns.³³

Furthermore the necessity of expert testimony in court is to be determined on the basis of "assisting the trier of fact". The rule is broadly phrased in that the fields of knowledge which may be drawn upon are not limited merely to the "scientific" and "technical" but extend to all "specialized" knowledge. Similarly, the expert is viewed, not in a narrow sense, but broadly as a person qualified by "knowledge, skill, experience, training or education".

³² Dennis Howitt, Forensic and Criminal psychology, (2002), P.7.

³³ World of forensic science (www.enotes.com/federal-rules-evidence-reference/federal-rules-evidence), Last visited 22 Dec.,2012.

Rule 702 simply requires that (1) the expert be qualified, (2) the testimony address a subject matter on which the fact finder can be assisted by an expert, (3) the testimony be reliable, and (4) the testimony fit the facts of the case. These requirements are left to the trial judge to oversee.

2.5.2 The legal scenario in England

Unlike the case in the United States, there is no single comprehensive legal regime governing the process of proof in general and expert evidence in particular under the legal system in THE United Kingdom and the trend is that the process of proof in legal proceeding is governed by the rules that are developed by the common law approach of judicial practices.³⁴

With respect to forensic evidence the relevant leading case law was R. v. Silverlock (1984) which has led the court to set the rule that an expert must have *appropriate qualifications*.³⁵ In that case a solicitor, whose expertise was said to be based on his business experience as well as his own independent study, was permitted to give opinion evidence on handwriting identification. The court, in admitting the evidence, reasoned out that it is sufficient for the expert witness, to be skilled in the area he give the testimony, irrespective of his lack of formal training. Commentators opine that the “silver lock case above in which court relied upon ‘*appropriate qualification*’ alone cannot exclude admission of forensic evidence which might have been found through dubious scientific technique.³⁶

Regarding fingerprint evidence which has been in use since 1902 to prove guilt before court,³⁷ there was a national standard which set that for the prosecution to rely on finger print evidence a

³⁴ Supra n.10, p.66.

³⁵ Supra n.4,p.96.

³⁶ Ibid

³⁷ Dr Victor Toom , Forensic DNA databases in England and the Netherlands: Governance, structure, and performance compared.(<http://www.tandfonline.com/loi/cng520?>),Lasst accessed15 Jan.,2013).

minimum of sixteen separate matching ridge characteristics need to be identified.³⁸ Recently, however, such a long last held and applied standard for the admissibility of fingerprint evidence has been restated into a general guideline form by certain appellate court in R. v. Buckley (1999) as follow:³⁹

If there are fewer than eight similar ridge characteristics, it is highly unlikely that a judge will exercise his discretion to admit such evidence and, save in wholly exceptional circumstance; the prosecution should not seek to adduce such evidence. If there are eight or more similar ridge characteristics, a judge may or may not exercise his or her discretion in favor of admitting the evidence. How the discretion is exercised will depend on all the circumstances of the case, including in particular (i) the experience and expertise of the witness; (ii) the number of similar ridge characteristics; (iii) whether there are dissimilar ridge

characteristics; (iv) the size of the print relied on, in that the number of similar ridge characteristics may be more compelling in a fragment of print than in an entire print; and (v) the quality and clarity of the print on the item relied on, which may involve, for example, consideration of possible injury to the person who left the print, as well as factors such as smearing or contamination.

2.5.3 The legal scenario in France

Under French criminal justice system the trial involves less oral evidence and the parties play a smaller role, particularly witnesses are questioned by the judge and hence judge do have a greater role in the process of fact finding than the common law countries which relies upon an adversarial process with active parties in the proceedings.⁴⁰ Police investigation in France is

³⁸ Supra n.8,p.182.

³⁹ Id at, p.283

⁴⁰ Supra n.4,p.206.

supervised by prosecutors (*le minister's public*) and *judges de instruction* (the usual English translation being examining magistrate.”⁴¹ Both the police and the examining judge are empowered to commission expert witness under the criminal procedure code of France. The pertinent provisions of the French criminal procedure code⁴² dealing with the power of the police and the examining judge reads as follow:

Article 60

Where there is occasion to carry out any forensic, technical or scientific examination, a judicial police officer has recourse to all qualified persons.

...the persons called upon take an oath in writing to assist the administration of justice upon their honor and conscience.

Article 77-1

In the case calls for findings of technical or scientific examinations which may not be postponed delayed, the district prosecutor or upon his authorization, the judicial police officer, resorts to any qualified person.

Article 156

Any investigating or trial court may order an expert opinion where a technical question arises, either upon the application of the public prosecutor, or of its own motion, or upon the application of the parties. The public prosecutor or the party who requests this expert opinion may specify the questions that he wants put to the experts in his application....

The experts carry out, their task under the supervision of the investigating judge or other judge designated by the court ordering the expert opinion.

⁴¹ Ibid

⁴² <File:///localhost/c:/Documents%20and%20settings/low5/Desktop/Frech%20prscedure%20code.htm>, Last accessed Dec.,2012)

Article 157 of the same code has listed official experts from which an examining judge has to choose. The lists are compiled by the courts and are reviewed every year.⁴³

The French inquisitorial system is praised for its space for court-supervised expert system because it is believed to alleviate an adversarial expertise and its consequent effect of expert shopping which are common under the Anglo-American system.⁴⁴ Generally the trust on expert evidence under the French criminal justice system is secured through the principle of impartiality of the experts to be appointed as stipulated under Article 60 of the criminal procedure code and the judicial supervision thereof. And in its very nature of being the continental legal system rules of evidence in France basically relies upon judicial discretion in the process of proof and as such trial judges are left with the discretion of assessing the reliability and validity of expert evidence in general.

CHAPTER THREE

The Legal Environment Governing Forensic Evidence in Ethiopia

3.1. General background

Technical criminal investigation capacity under the justice system of Ethiopia has been poor and proof in trials basically relies upon an eye witness account which has multi-faceted drawbacks such as fallibility in perception and/or expression, perjury and timely unavailability during trial proceedings in court.⁴⁵

Currently the application of science and technology in the criminal investigation is under reform. There is a movement to improve the technological infrastructure and personnel under the existing national forensic laboratory of Ethiopian Federal Police Commission Forensic

⁴³ Supran.4, p.209

⁴⁴ Ibid

⁴⁵ Manderot Belay, "A Review of the Ethiopian Justice Reform Program", in TayeAssefa (ed.), Digest of Ethiopia's National Policies, strategies and programs, (2008), p.435

Investigation Department on the one hand and to establish additional forensic laboratories in different regional states on the other hand.⁴⁶ An Automated Fingerprint Data Base which was installed in 2005 has replaced the manual practice of taking finger prints using paper and ink.⁴⁷ The forensic investigation department is rendering forensic investigation services on a country-wide basis on finger print analysis and disputed document examination.⁴⁸ Besides, however, the existing legal regime is not in tune with such scientific and technical application in the process of investigation and trials.⁴⁹

There is no properly developed legal regime regulating the process of collecting analyzing, and presenting of physical evidence such as finger print, body fluids like blood, semen and other possible materials from a suspect, a victim or any other source. In trials, too, the existing legal regime of evidence shows a number of lacunas in addressing issues relating to admissibility and reliability of forensic and medical evidences.

3.2. The legal scenario of forensic investigation in Ethiopia

Criminal investigation is the process of discovering, collecting, preparing and presenting evidence so as to determine the crime committed and the person responsible thereof.⁵⁰ Such process is governed by a body of law known as the law of investigation.⁵¹ The law of investigation deals with the proper ways of bringing a suspect before the court or police and of collecting evidence relating to the crime.⁵² In Ethiopia such criminal investigation procession is basically regulated by the Criminal Procedure Code of 1961 and the rules of criminal investigation under the Code regulates the process of police interrogation, search and seizure, and the like.⁵³

⁴⁶Ibid

⁴⁷www.ezega.com/News/NewsDetails.aspx?page=head&newsID=2484, Last visited January, 2013.

⁴⁸Haptamu Bekele Sembeta, An Evaluation of the Techniques Used to Collect Latent Prints from Documents: A case study in Addis Ababa, (2010, Unpublished, Ethiopian Police University College Library), p.2.

⁴⁹Adane Genetu Bayih, The Body of a Perpetrator as Source of Physical Evidence in Rape: A case study in Bahir Dar, (2010, Unpublished, AAU Law Library), p.iii

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⁵⁰Wondowssen Demissie kassa, Ethiopian criminal procedure Law: A text book, (2012), p.47.

⁵¹Ibid

⁵²Ibid

⁵³The Criminal Procedure Code Ethiopia, 1961 Arts. 22-49

And other legislations enacted to deal with certain special offences such as terrorism and corruption has also added to the oldest Code's rules of investigation.

Forensic investigation, on the other hand, is the use of science and technology in the process of criminal investigation_ it is a combination of scientific and investigative methods and techniques to help the process of fact finding.⁵⁴

The process of gathering evidences from the body of a suspect and a victim using medical and other scientific methods is not well regulated. Most forensic investigation techniques, such as DNA evidence and fingerprinting, requires the taking of samples of body fluids like blood, semen and saliva and the fingerprint of the suspect and/or the victim in a given crime, as the case may be.

Having this general nature of criminal investigation and forensic investigation in mind now we will proceed to discern the existing legal scenario of forensic investigation in Ethiopia.⁵⁵

The Federal Police Commission Establishment's Proclamation of 2011⁵⁶ in its article 6(15) has clearly recognized forensic investigation as one of the commission's power and duty. The full text of the provision reads that the commission shall have the power and duty to:

Conduct forensic investigation and submit its findings and provide expert witness to court or the requesting organ.

The same proclamation has recognized the possibility for private individual to render forensic investigation services. Art. 6(29) authorize the Federal Police Commission to "issue certificate of competence to persons wishing to engage in providing forensic investigation service".

⁵⁴Andrew R.W. Jackson and Julie M. Jackson, Forensic Sciences, (2004). Pp.224-6.

⁵⁵Supran.

⁵⁶Federal Police Commission Establishment Proclamation, 2011, Proc. No. 720, Fed. Neg. Gaz., 18th year, No, 2

Thus, under the current legal system of Ethiopia both the government and private institutions can render forensic investigation services.

Under the Criminal Procedure Code of Ethiopia, which has been in force for about half a century, an investigating police officer is authorized to require expert medical practitioner to undertake physical examination of a suspect and the victim for the purpose of investigation into crimes. Article 34 of the code reads as follows:

Art. 34- Physical examination.

- 1. Notwithstanding the provisions of Art. 20 civil code where an investigating police officer consider it necessary, having regard to the offence with which the accused is charged, that a physical examination of the accused should be made, he may require a registered medical practitioner to make such examination and require him to record in writing the results of such examination. Examination under this Article shall include the taking of a blood test.*
- 2. An investigating police officer may, with the agreement of the victim of an offence or, where he is incapable with the consent of the parent or guardian, require a registered medical practitioner to make such physical examination as the offence being inquired into would appear to require. He shall require the registered medical practitioner to record in writing the results of such examination.*

This legal rule is an exception to Art. 20 Civil Code which prohibit compulsory medical examination of persons by providing in its pertinent that:

(2) Nothing in this Article shall affect the provisions of laws or regulations providing for a physical examination of persons... or other similar measures in the public interest.

Cumulatively read Art. 20(2) Civil Code and Art. 34(1) Criminal Procedure Code allows for compulsory physical medical examination of criminal suspects, in the absence of any clear exceptional legal rule. In contemporary legal system, however, such an unregulated discretion of police has been challenged against some human right values such as the right to privacy, the right against self –incrimination, the right to physical integrity and even the right to life. In

Netherlands, for instance, it is a controversial and most widely disputed constitutional issue among the legal community to make compulsory physical medical examination of the suspect.⁵⁷ The same controversy exists in Indian legal system.⁵⁸

More bluntly, the Anti-Corruption Proclamation of 2009 has expressly provided for compulsory physical examination of suspects. Suspects are obliged to give such samples, and undergo medical test, as stipulated under art.21 of the proclamation which reads:

Art 21 – Duty to giving samples

The police may order a person suspected of acts of terrorism to give samples of his hand writing, hair, voice, finger prints, photograph, blood, saliva and other body fluids, for investigation. Moreover, he may order the suspect to undergo medical test. If the suspect is not willing for the test, the police may use necessary and reasonable force to take samples.

Generally, the existing legal regime gives no room for the fair investigative procession. The general balancing function of criminal investigation law is lacking.

3.3 FORENSIC EVIDENCES IN TRIALS

Due to the absence of a single body of the law of evidence in Ethiopia it is difficult to find a common rule governing forensic evidences under both the civil and the criminal trials. Distinction between civil and criminal matters with respect to evidence in general lies on the emphasis given to each case. Generally, though, the purpose of evidence law is establishing the truth, in criminal case it goes beyond that and protect the right to fair trial through the principles of exclusionary rules, presumption of innocence, the right against self-incrimination etc. which are non-existent in civil case. Besides this general truth, the current legal scenario of forensic evidence in trials shows a discrepancy between civil and criminal trials due to difference in the

⁵⁷www.gspjournal.com, Last Visited 16 Feb., 2013.

⁵⁸Adarsh M. Dhabarde, "Forensic Evidences in criminal Trials: Need of the hour" (http://www.papers.ssrn.com/so/3/papers.cfm?abstract_id=211995) Last visited 24 Jan., 2013.

phase of judicial jurisprudence developed by courts with regard to criminal trials there is no well-developed and regulated forensic evidence where as there are certain development wonder civil trials. Having this in mind the possible legal scenario of scientific and technical evidence under the civil and the criminal trials will be examined as follow.

3.3.1. The legal scenario of forensic evidence in civil trials

Technical evidences such as DNA test results and expert analysis of disclaimed hand writing or signature could be used under civil trials in Ethiopia. The Federal Revised Family Code allows for the use of medical and other reliable scientific evidence in prove of paternity.⁵⁹

The Federal Supreme Court cassation division has also confirmed such rule in allowing DNA evidence to be used in case of disputed paternity.⁶⁰

The same court has recognized that in case the signature or handwriting is disclaimed by a party the first method to prove who the author thereof is resorting to forensic analysis of the disputed signature or handwriting.⁶¹ Besides such admission of forensic evidence, however, there is no single guideline developed under Ethiopian legal system to deal with forensic or scientific and technical evidences of such sort.

The existing legal regime pertinent to forensic evidence under civil trials is Article 136 of the civil procedure code which reads:

Art. 136- Appointment of experts

- (1) Whenever the court considers it necessary or expedient that the facts in dispute between the parties should be verified, it may of its own motion or on application issue a commission to one or more experts or other persons skilled in the matter, directing them to verify such facts and to report thereon to the court within such time as it shall fix.*
- (2) The commission shall specify clearly and distinctly the facts to be verified....*

⁵⁹Anti-Terrorism Proclamation, 2009, Art. 21, Proc. No. 652, Fed. Neg. Gaz.,15th year, No. 57.

⁶⁰Raymond Emson, Evidence , (4th ed., 2006) p.4

⁶¹The Revised Family Code Proclamation, 2000, Art 144(a) and (c), Proc. No. 213, Fed. Neg. Gaz., 6th year, Extraordinary issue No.1.

Based upon this general provision the Federal Supreme Court Cassation Division has made explanatory and guiding legal interpretation on certain rules pertaining expert evidence at different occasions.

Recently in June 2011 the division has explained what expert witness do mean as *persons who have developed a knowledge through education, training and experience*, and it further laid down a guideline that courts shall make sure the expertise of expert witnesses upon calling.⁶²

Another interpretation developed by the court shows that Ethiopia follows the approach of civil law legal system in the field of expert commissioning and as such it explained that experts are appointed and supervised by court.⁶³ In this system experts are required to be impartial in that their role is to help the justice system to arrive at the truth.⁶⁴ They shall not appear to support either party to the case unlike other ordinary witnesses. Regarding the standard of admissibility of expert evidence there is no complete and clear rule. In its decision under *Ambessa City Bus Service V. Zenebework et al.* the division has rendered a legal interpretation guiding courts as to the admission of expert evidence based upon *the reliability of the field of expertise employed to investigate the subject matter in dispute, the nature of materials used, and the existence of other direct and reliable evidence*.⁶⁵

The same division has once laid down an interpretative guideline that technical or scientific evidences are not such evidence which stands by itself nor irrefutable rather its cogency and reliability has to be weighed cumulative to other evidences.⁶⁶

Generally the existing legal scenario of forensic evidence in civil trials shows the continental legal system approach of judicial supervision of the experts. The judicial practices of the federal

⁶²Tiruwork Wordofa V Triunesh Wordefa, (Federal Supreme Court Cassation Division, Dec. 23, 2012), Federal supreme court cassation Division, Vol. 11, p.59.

⁶³Abebe Kebede V Meseret Yeman, (Federal Supreme Court Cassation Division, April 18, 2012), Federal Supreme Court Cassation Division, Vol. 13, p.215.

⁶⁴Yessu P.L.C. V Dejene Bekele et al., (Federal supreme court cassation Division, June 6, 2011), Federal Supreme Court Cassation Divison, Vol. 12, p.362.

⁶⁵Chilalo Construction P.L.C Africa Engineers Construction, (Federal Supreme Court Cassation Division, Dec. 23, 2010), Federal Supreme Court Casatino Division, Vol. 12, p.404.

⁶⁶Ibid

Supreme Court Cassation Division, whose interpretation of a law is binding source of law, ⁶⁷ has laid down a guideline to be followed in determining the admissibility of expert evidence though not comprehensively. These are impartiality of experts, ⁶⁸ the propriety of the field of expertise of the experts,⁶⁹ and the cogency of materials or technology employed by the experts. ⁷⁰

3.3.2. Forensic evidence in criminal trials

Besides the existing general enabling legislations on police forensic investigation discussed under section 3.2.above, courts under Ethiopian legal system are empowered to request opinion of experts on certain points. The Criminal Code of the Federal Democratic Republic of Ethiopia under Art. 51 provides for the calling of expert to examine the mental condition of an accused in case doubt arises as to his responsibility. Article 54 of the same code allows the court to require the production of expert evidence regarding the physical and mental condition of the young person accused of a crime. The law under both cases guides the court to be *bound solely by definite scientific findings and not by the appreciation of the expert as to the legal inferences to be drawn*.⁷¹

Another pertinent legal scenario under which the trial judge can make use of forensic evidence is provided under Art. 554 of the same code which deals with the case of **crimes against person and health**. The full text of the provision reads:

Where there is doubt as to the nature of a case, its consequences or its gravity, the court may call for an expert forensic medical assessment to assist in deciding the case.

The problem, however, is that there is no specific rules of evidence regulating the reliability of such expert opinions under the Criminal Justice System. The existing legal rule does not lay

⁶⁷Supra n. 20

⁶⁸Ambessa City Bus Service Organization V. Zenebework et al., (Federal Supreme Court Cassation Division, Nov. 28, 2010), Federal Supreme Court Cassation Division, Vol. 12,p.388

⁶⁹Ethiopian Development Bank V. Hawa Mohammed, (Federal Supreme Court Cassation Division, April 11,2006) Federal Supreme Court Cassation Division, Vol. 12, P.391

⁷⁰Federal Courts Proclamation, 1996, Art. 10, Proc. No. 25, Fed. Neg. Gaz., 2nd Year, No. 13, as amended, Federal Courts (Amendment) Proclamation, 2005, Art. 2, Proc. No. 203, Id,

down any guideline as to the role of court in assessing the reliability of expert evidence in general. In the absence of such clear legal rules as to the admissibility of forensic evidences such as fingerprinting, DNA test and others, not only the investigating police officer has to face much trouble in collecting such evidences but also the tribunal itself has to face the dilemma as to the admissibility of and the weight to be given to each sort of forensic evidence.

Therefore, it would better to employ the principle of analogical application of laws, that allows us to use legal provisions in order to regulate a specific situation or legal gap due to the fact that specific norms for this type of evidence does not exist. Taking into account the general nature of the law of criminal evidence, i.e., it has a function of balancing between the protection of suspects in criminal proceedings on the one hand and reflects the powerful public interest in bringing the guilty to justice on the other hand,⁷² it will be proper to examine the pertinent constitutional provisions and the internationally accepted principles on the subject matter of

criminal evidence in general and the expert evidence in particular. In order to fill the existing gap under statutory evidence provisions, courts in Ethiopia usually recourse to those rules of evidence recognized under other jurisdictions, usually those of common law countries.⁷³ The most relevant rule on the admissibility of evidence under the constitution of the FDRE is Art. 19(5) which reads:

Persons arrested shall not be compelled to make confessions or admissions which could be used in evidence against them. Any evidence obtained under coercion shall to be admissible. (Emphasis added)

The scope of application of this general constitutional provision has caused a controversy among scholars. Some writers have seen at this provision broadly and argue that any sort of evidence

⁷²Ibid, see also supra n. 24.

including physical evidence such as blood, semen and saliva which can be used as evidence against the suspect should have not been taken in violation of the right to privacy as well as the right against self-incrimination.⁷⁴

The phrase **any evidence** in the second statement is construed to be inclusive of the taking of physical evidences from the body of the suspect.⁷⁵ However, excluding evidence is a drastic option because the reason why the general rule is that we admit all relevant evidence is that we believe that relevant evidence helps fact-finder to ascertain the truth.⁷⁶ The exclusion of evidence may thwart this end. The practice in other jurisdictions also indicates that evidences obtained in violation of certain rights such as the right against self-incrimination and the right to privacy, are not excludable *per se*, rather only impropriety which has prejudiced a trial shall be excluded automatically.⁷⁷ The general principle developed under the common law legal system regarding exclusion of relevant evidence focuses on the relative weights of its probative and prejudicial values in that where its prejudicial value outweighs its probative value the evidence shall be thrown out.⁷⁸

These all can be a lesson for courts in Ethiopia in dealing with exclusionary rule adopted under the constitution because our courts usually resort to the legal systems of other jurisdictions.

In addition to this general legal scenario governing admissibility of forensic evidence under Ethiopian legal system some internationally accepted rules of expert evidence are recognized scattered under the general legal provisions allowing courts to require opinion of expert witnesses which are discussed earlier. More specifically it can be inferred from articles 51(3) and 54(3) of the FDRE criminal code that expert evidence may be excluded when:

⁷⁴The Criminal Code of the Federal Democratic Republic of Ethiopia, Articles 51(3) & 54(3).

⁷⁵Supra n. 16

⁷⁶Molla Ababu and Worku Yaze, Materials on Law of Evidence: Notes, Cases and Questions, (2010), P.5.

⁷⁷Id at P. 142 See also

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⁷⁸Ibid

- It concerns a topic on which the court is able to form its own judgment, or
- The expert lacks expertise on the topic on which he is giving evidence.